

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 21-02

**YSN IMPORTS INC. d/b/a FLAME KING,
Complainant,**

v.

**FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC.,
Respondents.**

RESPONDENTS’ MOTION TO COMPEL DOCUMENT REQUESTS

Respondents Feige “Peggy” Oberlander, U Shippers Group Inc. (the “Association”), U Shippers Group Management Co., Inc. (“Management”) (all three Respondents collectively “Respondents”) hereby move to compel YSN Import, Inc. d/b/a Flame King (the “Complainant” or “YSN”) to produce documents in response to the Respondents’ document requests, specifically service contracts, and communications related to service contracts, for an alternative shipping contract that Complainant asserts forms the basis of its damages claim.¹ YSN cannot bring a proceeding in which it claims damages, and then withhold discovery directly relevant to its claim for damages. The Presiding Judge should order all the requested documents to be produced.

Summary of Issue in Dispute

Complainant seeks reparations under the Shipping Act. It claims that it was improperly terminated from the Association and suffered damages in the form of increased shipping costs it

¹ The parties met and conferred in an effort to resolve this discovery dispute by email and by phone, but those efforts were unsuccessful.

had to pay for alternative shipping arrangements. The discovery at issue on this motion concerns this claim for reparations, and the alternative arrangements made by YSN.

The Association terminated YSN's membership due to shipping cargo in excess of the space it was allotted under the shipping contract the Association had entered into with the carrier.² YSN now asserts that due to its expulsion it incurred damages because it had to move 605 shipments of cargo through means other than the Association, even though Complainant was never under an obligation to ship any cargo with the Association, and the Association was never under a contractual obligation to arrange to ship a specified amount of containers (or TEUs)³ on behalf of YSN. Respondents' document requests served on the Complainants sought discovery regarding, *inter alia*, all documents related to the 605 shipments. Encompassed within the request are which service contracts the 605 shipments moved under.

FASA Service Contract

The Respondents sought all documents concerning any attempts by YSN to seek shipping space for the 605 shipments incurred from expulsion until the end of the service contract year with Maersk, and all documents concerning any shipments made or contracted for by YSN with other ocean carriers for the time period at issue. *See* Document Requests Nos. 6 and 7 and Responses thereto, attached as Exhibit A. The alternative arrangements entered into by YSN, and the net costs thereof, are obviously directly relevant to YSN's claim for reparations.

Here, documents produced in discovery establish that in the middle of the life of the Association Service Contract, in February of 2020, YSN formed a new shippers association,

² Even if such a duty could be said to exist on the part of the Association, YSN shipped *more* TEUs under the Association Service Contract than it estimated it would need during the life of the contract.

³ Twenty-foot equivalent units.

Freight Alliance Service Association (“FASA”), with other U Shippers Group Members, and entered into Service Contracts with Maersk and ONE. *See* Exhibit B, YSN 00009737.⁴ The documents produced in discovery reflect that Sam Newman, the CEO of YSN, negotiated and approved the terms of those service contracts on behalf of FASA and is the Director of FASA. *See* Exhibit C, YSN 00010198-00010201. Further, the Complainant does not dispute that YSN shipped goods, for which it seeks recovery, under those Service Contracts. Nonetheless, it refuses to produce the Service Contracts and all communications related to such Service Contracts.

YSN asserts two grounds for refusing to do so, neither of which can withstand scrutiny. First, it alleges that although YSN’s CEO negotiated the terms of the FASA Service Contracts, YSN does not have the Service Contracts in its possession or control. Such a position smacks of gamesmanship and reflects a transparent attempt to hide discoverable material from the Respondents.⁵

Alternatively, YSN asserts that the service contracts contain confidential information. Again, however, that does not render them immune from discovery, particularly given that the Presiding Judge has already issued a Protective Order (Docket No. 32) designed to prevent dissemination of confidential information outside of this proceeding. That Order was the result of

⁴ The Association negotiated an agreement with Maersk, whereby Maersk would not allow its platform to be used by newly-established shipping associations until April, 2023. YSN’s newly created shipping association, FASA, then competed for space on vessels with U Shippers Association, resulting in the Association’s allocations being cut.

⁵ To the extent that YSN asserts that some of the same the same information can be obtained from bills of lading it belatedly produced on November 31, 2021, its assertion is misguided. First, the Respondents are still reviewing those documents to determine if they are complete. Moreover, documents produced in discovery reflect that there are (unspecified) performance bonuses and credits being offered to YSN which may not be apparent from the individual bills of lading. Further, it is obviously much easier to analyze and compare the costs associated with shipments based on comparing respective service contracts rather than based upon 605 individual bills of lading.

a joint motion, and YSN agreed to its terms. YSN, therefore, can designate the documents, or portions thereof, confidential, if that is appropriate.

For the foregoing reasons, Respondents request that YSN produce all service contracts under which its cargo moved, as well as all documentation related to such service contracts.

Dated: December 2, 2021

Respectfully submitted,

/s/ Brendan Collins

Brendan Collins
GKG LAW, P.C.
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Tal S. Benschar
KOFFSKY SCHWALB LLC
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New York, New York 10018
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Fax.: 646-553-1591
eschwalb@koffskyschwalb.com
tbenschar@koffskyschwalb.com

*Counsel for Respondents Feige “Peggy”
Oberlander, U Shippers Group Inc., and U
Shippers Group Management Co., Inc.*

Exhibit A

BEFORE THE
FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

Complainant,

v.

FEIGE "PEGGY" OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

Docket No. 21-02

Complainant's Response to Respondents' First Set of Document Requests

Pursuant to the Federal Maritime Commission ("FMC") Rules of Practice, 46 C.F.R. § 502.146, the Complainant YSN Imports Inc. d/b/a/ Flame King ("YSN"), by and through its attorneys, Holland & Knight LLP, serves its objections and responses to Respondents', Feige "Peggy" Oberlander, U Shippers Groups Inc., and U Shippers Group Management Co., Inc.'s, First Set of Document Requests as follows:

General Responses and Objections

These general responses and objections are incorporated into each specific response below and are not repeated therein.

General Response

1. Complainant's responses to Respondent's First Set of Document Requests set forth below are based upon information now available to Complainant after having made a

diligent search of files in its possession, custody or control. The Complainant anticipates that additional information may be forthcoming from Respondents in response to Complainant's Discovery Requests.

General Objections

2. YSN objects to the each Discovery Request to the extent it is unduly burdensome, oppressive, unreasonably cumulative, duplicative, and overbroad and seeks information that is not reasonably calculated to lead to the discovery of admissible evidence.

3. YSN objects to the each Discovery Request to the extent that it seeks information not in the possession, control or custody of YSN, or which are in Respondents' possession, control or custody or are otherwise accessible to Respondents with substantially the same or greater facility than YSN.

4. YSN objects to each Discovery Request to the extent that it calls for the disclosure of confidential or proprietary information, trade secrets, commercial information, or any other competitively sensitive information, the release of which could cause direct or indirect competitive or commercial harm to YSN or a third party, or whose disclosure is prohibited by any law, regulation, order, contract or otherwise.

5. YSN objects to each Discovery Request to the extent that it calls for the disclosure of information or production of documents protected from disclosure by the attorney-client privilege, the work-product doctrine, the FMC's Rules of Practice and Procedure, rules governing privacy or confidentiality, laws governing the disclosure of personal or other protected

information of clients, and any other applicable privilege, immunity, or protection from discovery, or whose disclosure is prohibited by any law, regulation, or order.

6. YSN objects to each Discovery Request that purports to impose obligations or duties beyond those required by the Federal Maritime Commission Rules of Practice and Procedure, 46 C.F.R. § 502, the Chief Administrative Law Judge's Initial Order dated March 10, 2021 and the Scheduling Order dated August 16, 2021.

7. YSN objects to each Discovery Request, Definition, and Instruction to the extent that it relies on an undefined term or terms, is vague or ambiguous, or overly broad or burdensome.

8. YSN does not waive and reserves the right to:

- a. Assert additional objections and/or supplementary responses should YSN discover additional documents, information, or grounds for objections;
- b. Revise, correct, supplement, or clarify any of its responses at any time.

Specific Requests and Responses

Request for Production No. 1:

All documents or things identified in, or required to be identified in, Your Initial Disclosures.

Response:

1. YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request, without waiver of or prejudice to its right, at any later time, to raise objections to: (a) the relevance, materiality or admissibility of the Requests or any part thereof, statements made in this response to the Requests or any part thereof, or any documents produced pursuant to this response; and (b) any further demand for discovery involving or relating to the matters raised in the Requests.

Request for Production No. 2:

All communications between YSN and any of the Respondents.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 3:

All agreements or contracts between YSN and any of the Respondents.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 4:

All documents reviewed or relied upon by YSN or its counsel in formulating its “estimate of damages” contained in YSN’s initial disclosures.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 5:

All documents concerning the “605 shipments incurred from expulsion until the end of the service contract year with Maersk” referenced in YSN’s initial disclosures.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 6:

All documents concerning any attempts by YSN to seek shipping space for the “605 shipments incurred from expulsion until the end of the service contract year with Maersk” referenced in YSN’s initial disclosures, including, without limitation, quotes from shippers or inquiries to shippers as to price and volume.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 7:

All documents concerning any shipments made or contracted for by YSN with other ocean common carriers from 2019 to the present.

Response:

In addition to the General Objections set forth above, YSN objects to the request for “all documents” for “any shipments” contracted for by YSN with other ocean common carriers “from 2019 to the present” as these terms are overly broad categories of documents, and the search for such documents would be unduly burdensome and further, the request is not calculated to lead to the discovery of admissible evidence. Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 8:

All documents concerning the introduction of Oberlander to Newman as alleged in Complaint paragraph IV.B.5.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 9:

All email communications referenced in the Complaint.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 10:

All documents concerning any communications by YSN with Maersk, or any employee or agent thereof.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 11:

All documents reflecting the basis for YSN's estimate that it would ship 750 FEU container shipments during the life of the Service Contract.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 12:

All documents reflecting the reason why YSN's estimate changed during the life of the Service Contract.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 13:

All documents reflecting the number of FEU containers shipped by YSN during the time period of the Service Contract.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 14:

All documents concerning YSN's allegation that "By this time, late July - early August, space in the container shipping industry was tightening and the parties were aware that there may be space availability issues in the future" as alleged in Complaint paragraph IV.B.24.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 15:

All documents concerning the conversations with "a high-ranking representative at Maersk," as alleged in Complaint paragraph IV.B.35.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 16:

All documents concerning the conversation alleged in Complaint paragraph IV.B.37 that “Newman again spoke with Maersk.”

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 17:

All documents concerning the conversation alleged in Complaint paragraph IV.B.41 that “On November 20, 2020, Newman again spoke with Maersk.”

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 18:

Copies of all “prior service contracts” referenced in Complaint paragraph IV.B.59.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 19:

All documents concerning any instance when YSN paid, or attempted to pay, “spot market rates” as alleged in Complaint paragraph V.D.2.

Response:

In addition to the General Objections set forth above, YSN objects to this Request on the grounds that it is overly broad, unduly burdensome and not calculated to lead to the discovery of admissible evidence. Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 20:

All documents relating to or reflecting communications between YSN and any ocean carrier from 2018 to the present.

Response:

In addition to the General Objections set forth above, YSN objects to this Request for “all documents” reflecting communications “between YSN and any ocean carriers from 2018 to the present” as these terms are overly broad, and the search for and production of such documents would be unduly burdensome, and further this overly broad request is not calculated to lead to the discovery of admissible evidence. Subject to and without waiving any objections, YSN will

conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 21:

All Documents and Communications concerning termination of YSN d/b/a Flame King from the Association including all bookings made by YSN pursuant to the contract of any of the Respondents with Maersk.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 22:

All documents identified by Complainants in their Initial Disclosures.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Request for Production No. 23:

All documents not previously identified above, which Complainants intend to use or rely upon in furtherance of its complaint, or in any dispositive motion in this action.

Response:

Subject to and without waiving any objections, YSN will conduct a reasonable search and produce non-privileged documents that may be responsive to this Request.

Dated: October 22, 2021

Respectfully submitted,

By: /s/ J. Michael Cavanaugh

J. Michael Cavanaugh
HOLLAND & KNIGHT LLP
800 17th Street N.W., Suite 1100
Washington, DC 20006
(202) 828-5084
michael.cavanaugh@hklaw.com

By: /s/ Vincent J. Foley

Vincent J. Foley
HOLLAND & KNIGHT LLP
31 W. 52nd Street
New York, NY 10019
vincent.foley@hklaw.com

*Attorneys for YSN Imports Inc. d/b/a
Flame King*

Exhibit B

From: Dorothy Von Ahnen <dorothy.von.ahnen@maersk.com>
To: Sam Newman <snewman@flameking.com>
Sent: 2/16/2021 7:23:26 AM
Subject: RE: FASA RFP

Sam...

One more question...The work sheet is blank....Need to have the port pairs....I know you sent the list of origins but need to see the port pairs with the Door points we were looking for....Can you send that attachment?

Thanks and best rgds,
Dva

Dorothy Von Ahnen
Cell: 973-452-9376

Classification: Internal

From: Dorothy Von Ahnen
Sent: Wednesday, February 10, 2021 4:52 PM
To: Sam Newman
Subject: FW: FASA RFP

Sam:

Hope you are well.

Can you help to put the first tab on the spread sheet in word format...trade cannot open it...I tried and cannot fix it....

Thanks and best rgds,
Dva

Dorothy Von Ahnen
Cell: 973-452-9376

Classification: Internal

From: Sam Newman
Sent: Thursday, January 14, 2021 7:16 PM
To: Dorothy Von Ahnen
Subject: FASA RFP

This message was sent from outside of your organization. Please do not click links or open attachments unless you recognize the source of this email and know the content is safe.

Dorothy,

We created a new shipping association along with the largest members of United Shippers Association (YSN Imports, Steelstone, and Ashtead to name a few). Please see the early bid details below:

YSN can use warehousing opportunity at destination. The warehouse can be between 30,000,000 SF in the Gulf, SE, or NE area.

- Total TEU
5000-10000

- Origin Ports
TH BKK
TH LCH
VN HCM
CN NGB
CN SHA
CN YTN
CN TAO
CN XIG

- Port of Discharge
US WC Ports 90%
US EC Ports 10%

Attached is the RFP spreadsheet we will be using for this process.

YSN00009737

If you have any questions or concerns feel free to reach out to me.

Thank you,

Sam Newman
Director



Freight Alliance Shipping Association

1797 Atlantic Ave. #301
Brooklyn, NY 11233
Tel: (877) 497-3272 (FASA)
snewman@fasausa.com

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Exhibit C

From: Dorothy Von Ahnen <dorothy.von.ahnen@maersk.com>
To: Sam Newman <snewman@fasausa.com>
CC: Paul Wills <paul.wills@maersk.com>; Krissy Van Niekerk <krissy.thompson@maersk.com>; israel@flameking.com <israel@flameking.com>; snewman@flameking.com <snewman@flameking.com>
Sent: 3/5/2021 11:56:57 AM
Subject: RE: FASA Contract

You haven't approved the rates dear

Thanks and best rgds,
Dva

Dorothy Von Ahnen
Cell: 973-452-9376

Classification: Internal

From: Sam Newman
Sent: Friday, March 5, 2021 2:54 PM
To: Dorothy Von Ahnen
Cc: Paul Wills ; Krissy Van Niekerk ; israel@flameking.com; snewman@flameking.com
Subject: Re: FASA Contract

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Dorothy, It was my understanding that once we approved the rates we would quickly get the contract # for booking purposes.

Sam

From: Dorothy Von Ahnen
Date: Friday, March 5, 2021 at 11:12 AM
To: Sam Newman
Cc: Paul Wills , Krissy Van Niekerk , israel@flameking.com , snewman@flameking.com
Subject: RE: FASA Contract

Sam

Hope you are well.

I understand your frustration. We had sent the contract details last week. We tried to mitigate the rates per your request to no avail. Once we got passed that piece you asked for us to add the IL door points. The team is currently working on adding those points. I followed up again this morning on it. As soon as we have details, Dacia and I will send it over to you for review and approval.

Thanks and best rgds,
Dva

Dorothy Von Ahnen
Cell: 973-452-9376

Classification: Internal

From: Sam Newman
Sent: Friday, March 5, 2021 2:08 PM
To: Dorothy Von Ahnen
Cc: Paul Wills ; Krissy Van Niekerk ; israel@flameking.com; snewman@flameking.com
Subject: FASA Contract

This message was sent from outside of your organization. Please do not click links or open attachments unless you recognize the source of this email and know the content is safe.

Dorothy,

As you are well aware, it is now over two weeks since United Shippers kicked us out of the association without cause. While we appreciate all the conversation and commitments from you and the Twill team to help us through this major business interruption, to date we have nothing to show for it. We now have production lines being shut down and product getting damaged from the elements because of lack of storage space.

We need a solution ASAP as we approved the rates several days ago and we still don't have a contract # to use to make bookings.

Sam Newman
Director



F A S A

Freight Alliance Shipping Association

1797 Atlantic Ave. #301
Brooklyn, NY 11233
Tel: (877) 497-3272 (FASA)
snewman@fasausa.com

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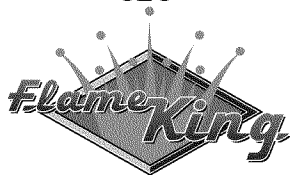
YSN00010199

From: Sam Newman <snewman@flameking.com>
To: Dorothy Von Ahnen <Dorothy.Von.Ahnen@maersk.com>
Sent: 3/5/2021 11:59:17 AM
Subject: Fwd: Destinations
Attachments: IMPORT CONTAINERS DESTINATIONS.xlsx

Below is the email I believed was approving moving forward with the contract.

Can we get the contract # today?

Sam Newman
CEO



Visit our website at: www.flameking.com

CA: 8616 Slauson Ave. Pico Rivera, CA 90660
PH:(310)715-1122 FAX:(310)715-1199

IN: 2601 Northland Dr., Elkhart, IN 46514
PH:(574)293-1800 FAX:(574)293-6161

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----- Forwarded message -----

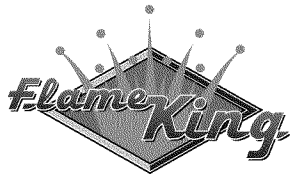
From: **Sam Newman** <snewman@flameking.com>
Date: Wed, Mar 3, 2021 at 11:03 AM
Subject: Fwd: Destinations
To: Dorothy Von Ahnen <Dorothy.Von.Ahnen@maersk.com>

Dorothy,

Please see the attached spreadsheet with our destinations. Please add these destinations for the new FASA contract. We need to start booking space as everything is backing up right now and need directions from you and the Twill team to make this happen.

Thank you,

Sam Newman
CEO



Visit our website at: www.flameking.com

CA: 8616 Slauson Ave. Pico Rivera, CA 90660
PH:(310)715-1122 FAX:(310)715-1199

IN: 2601 Northland Dr., Elkhart, IN 46514
PH:(574)293-1800 FAX:(574)293-6161

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----- Forwarded message -----

From: **Sherylle Fauni** <sherylle@flameking.com>
Date: Wed, Mar 3, 2021 at 10:59 AM
Subject: RE: Destinations
To: Sam Newman <snewman@flameking.com>

Hi Sam,

See attached.

Thanks,

Sherylle

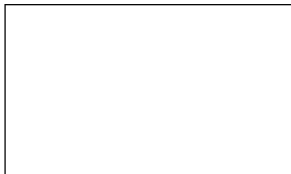
From: Sam Newman <snewman@flameking.com>
Sent: Wednesday, March 3, 2021 9:33 AM
To: Sherylle Fauni <sherylle@flameking.com>
Subject: Destinations

Sherylle,

I need all the YSN shipping destinations for our contract with Maersk.

Sam Newman

CEO



Visit our website at: www.flameking.com

CA: 8616 Slauson Ave. Pico Rivera, CA 90660
PH:(310)715-1122 FAX:(310)715-1199

IN: 2601 Northland Dr., Elkhart, IN 46514
PH:(574)293-1800 FAX:(574)293-6161

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YSN00010201

CERTIFICATE OF SERVICE

I hereby certify that that on this 2nd day of December, 2021, I have served the foregoing document upon all parties of record by electronically mailing a copy to each such person.

/s/Brendan Collins

Brendan Collins